

Case :- WRIT - C No. - 10304 of 2021

Petitioner :- Radhey Shyam Yadav

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Munna Lal, Pramod Kumar Srivastava

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Mrs. Sadhna Rani (Thakur), J.

Heard learned counsel for the parties and perused the record.

The petitioner herein seeks to submit that there was an electricity connection of 7.5 horse power for operating pumping set in the name of the petitioner's father who had died in the year 2005. After death of the consumer, the petitioner had moved an application for transfer of connection in his name and kept on depositing the electricity bill for the use of the pumping set.

It is contended that in the month of July, 2020, the old pumping set became corrupt/damaged and the petitioner made a complaint before the competent authority and a certificate in this regard has been issued on 31.12.2020. Copy of the said certificate is appended as Annexure '3' to the writ petition. Thereafter, the petitioner demanded for issuance of electricity connection of 3 horse power pumping set, as per his requirement, which had been installed and is running at present. The connection has, however, not been transferred in the name of the petitioner till date.

Sri Narendra Kumar Tiwari learned Advocate for the respondent nos. 2 to 4 states that as per the procedure prescribed in Clause 4.44 of the U.P. Electricity Supply Code, 2005, the petitioner has to apply for transfer of connection in prescribed form by the depositing the processing fee. As the petitioner has not submitted requisite application, no action has been taken. The application sent through the registered post would not suffice the requirement.

Considering the above, the petitioner is relegated to approach the competent authority by moving a proper application under Clause 4.44 of the U.P. Electricity Supply Code, 2005.

In case such application is moved, the competent authority shall be under obligation to take an expeditious decision, in accordance with law, preferably within a period of one month from the date of the receipt of the application.

The writ petition is, accordingly, ***disposed of***.

Order Date :- 23.7.2021

P Kesari